

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: August 17, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

Zoom Meeting ID: 160 941 6482

Zoom Meeting Passcode: 693685

To access Zoom by telephone:

• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

9:30 a.m. CALENDAR

LINE

5

**IN THE MATTER OF THE J.L.B AND D.D.B. FAMILY TRUST
FPR051944**

Status Review Hearing

PREGRANT ORDER

This matter was continued from July 16, 2025, October 3, 2025, January 23, 2026 and April 30, 2026 to allow the parties to sign and file their stipulation. The court has read and considered the Status Conference Statement and intends to grant a 90-day continuance.

The court on its own motion continues this hearing to November 18, 2026, at 9:30 a.m. in Department 22.

LINE

6

**IN RE THE ESTATE OF BETTY WADLEY, DECEASED
PR23-00420**

First and Final Account and Report of Administrator and Petition for Final Distribution and For Allowance of Statutory Compensation and Extraordinary Fees

PREGRANT ORDER

The court on its own motion continues this hearing to September 23, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The petition states that the beneficiaries of the decedent were Anthony Wadley, Sr. and Larry Darnell. However, the decedent had two other predeceased children, "David Dixon, II" and "Michael Dixon" who left issue, were not given notice and may be entitled to distribution of the estate. The petitioner shall file proof of service showing proper notice has been given. (Prob. Code §6402(a).)
2. Petition, ¶16: The addresses for each heir were missing from the petition for final distribution and a statement indicating whether they are adults or minors. In addition, the petition was missing the date of death for the decedent's deceased children and the information for their issue. (Solano County Local Rule 7.66 d (1).)
3. Petition, ¶17: The specific details of the proposed distribution must be provided. A description by reference to the inventory in percentages is not acceptable. (Local Rule 7.66(b).) It is unknown if the distribution is cash, personal property, real property, in

whole or in part, and how much will be distributed in detail before or after the fees and costs. The inventory and appraisal shows that the estate had on half interest of real property, but the declaration included in the petition states that the estate recovered \$75,000 cash from the litigation settlement. The petitioner shall clarify if the estate holds cash or interest in real property.

4. Extraordinary Attorney Compensation: Extraordinary compensation “is within the discretion of the court” and the court may allow extraordinary compensation in an amount the court determines just and reasonable. (Cal. Rules of Court, Rule 7.703 (a); Prob. Code §10811(a).) The request for extraordinary attorney’s fees does not comply with California Rules of Court, Rule 7.702. There were also no invoices attached the attorney’s declaration as indicated in the petition. However, billing statements are not sufficient to support extraordinary fees. (Solano Local Rule 7.64a.)

5. The Notice of Hearing filed on July 13, 2026 includes a different name than the petitioner. The petitioner shall clarify and file and serve an amended notice, if necessary to provide proper notice.

6. The court notes that in a related matter, Solano Superior Court, Case Number FCS059553 *Brayton Purcell, LLP v. Betty Wadley, et al.*, the petitioner was to receive a settlement on behalf of the decedent’s estate and inventory the proceeds. The petitioner shall explain what happened to the proceeds from this case.

LINE

7

THE GILBERT GLORIA REVOCABLE AS RESTATED IN FULL
JANUARY 26, 2018
PR25-00047

Petition for an Order Compelling a Proper Accounting, Removal of Trustee, Surcharge, and for Attorneys’ Fees [Probate Code §§ 17200, 16062, 15642, 859 et seq.]

Objection and Response to Petition for an Order Compelling a Proper Accounting, Removal of Trustee, Surcharge, and for Attorney's Fees (Probate Code §§17200, 16062, 15642, 859, et. seq.)

Reply to Objection and Response to Petition for an Order Compelling a Proper Accounting, Removal of Trustee, Surcharge, and for Attorneys’ Fees

PREGRANT ORDER

This matter was continued from March 2, 2026, April 20, 2026 and July 20, 2026. The court has reviewed the objection filed March 27, 2026 and the Reply filed April 9, 2026 which requested a 90-day continuance to allow the trustee’s new counsel to prepare, serve

and file an accounting. No additional documents have been filed since the last hearing date.

Counsel and parties to appear. Remote appearances are approved.

LINE

8

**IN RE THE ESTATE OF PATRICIA L. SILVA, DECEASED
PR25-00330**

First and Final Report of Administrator and Petition for Final Distribution on Waiver of Account

PREGRANT ORDER

The court on its own motion continues this hearing to October 8, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issue:

There is no proof of service on file to show proper notice has been given. The proof of service attached to the Notice of Hearing filed on July 15, 2026 was not completed.

LINE

9

**IN THE MATTER OF THE JERNICE SMITH, TRUSTEE OF THE MABEL A. TYRONE 1996 LIVING TRUST
PR25-00430**

Petition for Instructions By Trustee; For Permission to Resign as Trustee and For Appointment of Sandra Roberts-Stokes As Successor Trustee

PREGRANT ORDER

Counsel and parties to appear and inform the court whether a private fiduciary has been found to fill the position of successor trustee and if whether the parties are in agreement of moving the case to Texas, which is where the only property of the trust is being litigated. Remote appearances are approved.

LINE

10

**IN RE THE ESTATE OF MARY SUSAN KITZMILLER, DECEASED
PR26-00421**

Petition for Probate of Will and for Letters Testamentary and Authorization to Administer
Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.

The holographic will of Mary Sue Kitzmiller dated October 3, 2024 is ordered admitted to probate.

The court appoints Frank Kitzmiller as executor with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for January 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for October 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.
